

List of Subjects in 40 CFR Part 745

Environmental protection, Hazardous substances, Lead-based paint, Lead poisoning, Reporting and recordkeeping requirements.

Dated: October 21, 1998.

William H. Sanders III,

Director, Office of Pollution Prevention and Toxics.

[FR Doc. 98-28867 Filed 10-27-98; 8:45 am]

BILLING CODE 6560-50-F

FEDERAL COMMUNICATIONS COMMISSION**47 CFR Part 73**

[MM Docket No. 98-187, RM-9371]

Radio Broadcasting Services; Des Moines, IA and Bennington, NE

AGENCY: Federal Communications Commission.

ACTION: Proposed rule.

SUMMARY: The Commission requests comments on a petition jointly filed by Triathlon Broadcasting of Omaha Licensee, Inc., licensee of Station KTNP, Bennington, NE, and Saga Communications of Iowa, Inc., licensee of Station KIOA-FM, Des Moines, IA, requesting (1) the substitution of Channel 227C3 for Channel 227A at Bennington and the modification of Station KTNP's license to specify the higher class channel and (2) the substitution of Channel 227C1 for Channel 227C at Des Moines and the modification of Station KIOA-FM's license to specify the lower class channel. Channel 227C1 can be allotted to Des Moines in compliance with the Commission's minimum distance separation requirements and utilized at Station KIOA-FM's licensed site, at coordinates 41-37-54 North Latitude and 93-27-24 West Longitude. Channel 227C3 can be allotted to Bennington with a site restriction of 15.2 kilometers (9.4 miles) east at coordinates 41-20-43 North Latitude and 95-58-33 West Longitude, to accommodate petitioners' desired transmitter site.

DATES: Comments must be filed on or before December 7, 1998, and reply comments on or before December 22, 1998.

ADDRESSES: Federal Communications Commission, Washington, DC 20554. In addition to filing comments with the FCC, interested parties should serve the petitioner, or its counsel or consultant, as follows: Martin R. Leader, Colette M. Capretz, Fisher Wayland Cooper Leader & Zaragoza L.L.P., 2001 Pennsylvania

Avenue, NW, Suite 400, Washington, DC 20006-1851, (Counsel to Triathlon Broadcasting of Omaha Licensee, Inc.); Gary S. Smithwick, Smithwick & Belendiuk, P.C., 1990 M Street, NW, Suite 510, Washington, D.C. 20036 (Counsel to Saga Communications of Iowa, Inc.)

FOR FURTHER INFORMATION CONTACT:

Leslie K. Shapiro, Mass Media Bureau, (202) 418-2180.

SUPPLEMENTARY INFORMATION: This is a synopsis of the Commission's Notice of Proposed Rule Making, MM Docket No. 98-187, adopted October 7, 1998, and released October 16, 1998. The full text of this Commission decision is available for inspection and copying during normal business hours in the FCC Reference Center (Room 239), 1919 M Street, NW., Washington, DC. The complete text of this decision may also be purchased from the Commission's copy contractor, International Transcription Services, Inc., (202) 857-3800, 1231 20th Street, NW, Washington, DC 20036.

Provisions of the Regulatory Flexibility Act of 1980 do not apply to this proceeding.

Members of the public should note that from the time a Notice of Proposed Rule Making is issued until the matter is no longer subject to Commission consideration or court review, all *ex parte* contacts are prohibited in Commission proceedings, such as this one, which involve channel allotments. See 47 CFR 1.1204(b) for rules governing permissible *ex parte* contacts.

For information regarding proper filing procedures for comments, see 47 CFR 1.415 and 1.420.

List of Subjects in 47 CFR Part 73

Radio broadcasting.

Federal Communications Commission.

John A. Karousos,

Chief, Allocations Branch, Policy and Rules Division, Mass Media Bureau.

[FR Doc. 98-28773 Filed 10-27-98; 8:45 am]

BILLING CODE 6712-01-P

FEDERAL COMMUNICATIONS COMMISSION**47 CFR Part 73**

[MM Docket No. 98-188, RM-9346]

Radio Broadcasting Services; Paonia, CO

AGENCY: Federal Communications Commission.

ACTION: Proposed rule.

SUMMARY: This document requests comments on a petition for rule making

filed by Angel T. Babudro, seeking the allotment of FM Channel 293A to Paonia, Colorado, as that community's first local commercial FM transmission service. Coordinates used for this proposal are 38-52-06 and 107-35-36.

DATES: Comments must be filed on or before December 7, 1998, and reply comments on or before December 22, 1998.

ADDRESSES: Secretary, Federal Communications Commission, Washington, DC 20554. In addition to filing comments with the FCC, interested parties should serve the petitioner, as follows: Angel T. Babudro, 302 Grand Avenue, P.O. Box 132, Paonia, CO 81428.

FOR FURTHER INFORMATION CONTACT:

Nancy Joyner, Mass Media Bureau, (202) 418-2180.

SUPPLEMENTARY INFORMATION: This is a synopsis of the Commission's Notice of Proposed Rule Making, MM Docket No. 98-188, adopted October 7, 1998, and released October 16, 1998. The full text of this Commission decision is available for inspection and copying during normal business hours in the FCC's Reference Center (Room 239), 1919 M Street, NW., Washington, DC. The complete text of this decision may also be purchased from the Commission's copy contractor, International Transcription Service, Inc., 1231 20th Street, NW., Washington, DC 20036, (202) 857-3800.

Provisions of the Regulatory Flexibility Act of 1980 do not apply to this proceeding.

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For information regarding proper filing procedures for comments, See 47 CFR 1.415 and 1.420.

List of Subjects in 47 CFR Part 73

Radio broadcasting.

Federal Communications Commission.

John A. Karousos,

Chief, Allocations Branch, Policy and Rules Division, Mass Media Bureau.

[FR Doc. 98-28774 Filed 10-27-98; 8:45 am]

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